

Mutual Nondisclosure Agreement

Sample document. All names and facts are fictitious.

This Mutual Nondisclosure Agreement (the "Agreement") is made as of March 17, 2026 (the "Effective Date") between Halvorsen Robotics, Inc., a Delaware corporation ("Halvorsen"), and Quillfeather Analytics LLC, a Utah limited liability company ("Quillfeather"). Each party may disclose Confidential Information to the other in connection with evaluating a possible joint development and licensing of warehouse automation software (the "Purpose").

1. Definition of Confidential Information

"Confidential Information" means any non-public information disclosed by one party (the "Disclosing Party") to the other party (the "Receiving Party"), whether orally, in writing, or by inspection, that is marked as confidential or that a reasonable person would understand to be confidential. Confidential Information includes source code, machine learning models and training data, product roadmaps, pricing, customer lists, and financial information.

2. Exclusions

Confidential Information does not include information that the Receiving Party can show by written records:

- is or becomes publicly available through no fault of the Receiving Party;
- was lawfully known to the Receiving Party before disclosure by the Disclosing Party;
- is received from a third party without a duty of confidentiality; or
- is independently developed by the Receiving Party without use of the Disclosing Party's Confidential Information.

3. Obligations of the Receiving Party

The Receiving Party will use Confidential Information only for the Purpose and will protect it using at least the same degree of care it uses for its own confidential information, but no less than reasonable care. The Receiving Party may share Confidential Information only with its employees, contractors, and professional advisors who need to know it for the Purpose and who are bound by written confidentiality obligations at least as protective as this Agreement.

4. Compelled Disclosure

If the Receiving Party is required by law to disclose Confidential Information, it will, to the extent legally permitted, give the Disclosing Party prompt written notice so the Disclosing Party may seek a protective order, and will disclose only the portion legally required.

5. Return or Destruction of Materials

Within fifteen (15) days after the Disclosing Party's written request, the Receiving Party will return or destroy all Confidential Information in its possession and certify the destruction in writing. The Receiving Party may keep archival copies required by law, which remain subject to this Agreement.

6. Term

This Agreement remains in effect for three (3) years from the Effective Date. The Receiving Party's obligations survive for three (3) years after the Agreement ends, except that obligations for trade secrets survive for as long as the information remains a trade secret.

7. No License

Nothing in this Agreement grants the Receiving Party any license or other right in the Disclosing Party's Confidential Information, except the limited right to use it for the Purpose.

8. Remedies

Unauthorized use or disclosure of Confidential Information may cause irreparable harm for which damages are an inadequate remedy. The Disclosing Party may seek injunctive relief in addition to any other remedy available at law or in equity.

9. Governing Law

This Agreement is governed by the laws of the State of Utah, without regard to its conflict of laws rules. The state and federal courts located in Salt Lake County, Utah have exclusive jurisdiction over any dispute arising under this Agreement.

10. Entire Agreement

This Agreement is the entire agreement between the parties about its subject matter and may be amended only in a writing signed by both parties.